

The Claremont City Council held a meeting on Wednesday, November 10, 2021, in the Council Chambers of City Hall.

The meeting was called to order by Assistant Mayor Damren at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
At-Large Councilor Dale Girard
Assistant Mayor Allen Damren
Mayor Charlene Lovett (arrived 6:35 p.m.)
At-Large Councilor Debora Matteau
At-Large Councilor Nicholas Koloski
Ward II Councilor James Contois (via telephone, home, alone)
Ward III Councilor Jonathan Stone

Absent:

At-Large Councilor Michael Demars

Also present:

Edward Morris, City Manager
Lisa Richmond, Finance Director

AGENDA CHANGES

None.

REPORT OF THE SECRETARY

A motion was made by Councilor O’Hearne and seconded by Councilor Matteau to accept the minutes of the October 19, 2021, City Council meeting.

Roll call vote:

O’Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 7-0.

A motion was made by Councilor O'Hearne and seconded by Councilor Stone to accept the minutes of the October 26, 2021, City Council meeting.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 7-0.

A motion was made by Councilor O'Hearne and seconded by Councilor Stone to accept the minutes of the October 27, 2021, City Council meeting, as amended.

Assistant Mayor Damren read changes that Mayor Lovett had requested:

- page 2, last bullet under Mayor's Notes - TLC Recovery Programs is seeking monetary donations, rather than donations of winter gear, for its Get Warm Campaign.
- page 10, last sentence of last paragraph - Replace the entire sentence with, "She also referenced the report written by the Committee established via HB108. Dated November 1, 2021, the report states, "With the backdrop of the recent experiences holding remote meetings during the pandemic and the dramatic increase in public participation at those meetings, the public and many public bodies strongly favor them." Given the findings and recommendations in this report, it is possible that changes will be made to RSA 91-A during the legislative session.
- page 11, last sentence - Replace with "Mayor Lovett said phoning in has been allowed in the past and she thought this option was covered under Council rules. "

At 6:35 Mayor Lovett arrived.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - no

Contois - yes

Stone - no

Lovett - yes

Motion carried 6-2.

MAYOR'S NOTES

Proclamation for Marta Smith's Retirement

Mayor Lovett presented a proclamation to Marta Smith, Children's Librarian, for her retirement on December 1st from the City of Claremont after more than 33 years.

Mayor Lovett's notes:

- Yesterday, the State Liquor and Wine Outlet in Claremont was dedicated in honor of Tony Maiola, who was born in Claremont in 1923, and died last year at the age of 96. Tony spent decades in public service, including 18 years at the Liquor Commission, six as the Commissioner.
- Today, the majority of the Council participated in a recount at the request of Councilor Demars. The recount resulted in slight increases in the number of votes for each At-Large candidate, but did not change who won the At-Large seats. Councilor Koloski and Councilors-elect Beliveau, Limoges and Mooshian will be sworn into office in January.
- November 11 is Veterans Day. American Legion Post 29 will hold a ceremony at Broad Street Park at 11 a.m.
- TLC Recovery Programs is seeking monetary donations for their Get Warm Campaign which begins November 15.

CITY MANAGER'S REPORT

The Planning and Development Department will be collaborating with the Parks and Recreation Department in an effort to submit a Recreation Economy for Rural Communities Grant. The grant is to help communities identify strategies to grow their outdoor recreation economy in an effort to revitalize main streets. This grant will be a great link between the City's outdoor recreation assets and the economy of the City Center. This relates to Goal # 3 of the Master Plan. Goal #3 of the City Center portion of the Economic Development Chapter of the Master Plan (Page 3-23) states "Create a city center identity or climate that draws residents and people from throughout the region and bi-state to enjoy."

This grant will not only continue the growth and revitalization of Claremont, but will dovetail nicely with the County's work with the Sugar River Region Destination Council (SRRDC), whose mission is to develop, promote, and sustain our regional assets to create a visitor economy and improve the quality of life for all who live, work, and visit our region.

If we are successful with this grant application, Staff will return and ask the City Council to authorize acceptance of the grant.

Mr. Morris highlighted some of the items listed in the Department Reports, including the hiring of several new employees to fill vacant positions; there will be a vaccination clinic at the Fire Department tomorrow 10 a.m.-5 p.m.; the Fire Chief is temporarily restricting powered parachutes at the Airport until rules for safety can be put in place; Airport is moving forward with obstruction easement in order to get 1000 feet of runway back; using ARPA funds, cloud-based printing is now available at the Library; November 26, 6-8 p.m. will be the holiday lighting and Santa's visit in Broad Street Park; temporary paving for the Pleasant Street Project is planned to be completed by November 22; recent test showed zero lead in Claremont's water system; thank you to Claremont's Lead Action Team and to Public Works for getting the lead out of our water system.

APPOINTMENT TO BOARDS AND COMMITTEES

Claremont Development Authority

A motion was made by Councilor Koloski and seconded by Councilor Matteau to appoint Reggie Greene to seat 5 of the Claremont Development Authority.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

Claremont Energy Advisory Committee

A motion was made by Councilor Matteau and seconded by Councilor Koloski to appoint Jessica Ball to seat 5 of the Claremont Energy Advisory Committee.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

CITIZEN'S FORUM

Steven Fitch thanked Mr. Morris for getting the US Flag reinstalled on the flagpole in Monadnock Park. It had been taken down, what he considered, prematurely for the end of the season. Mr. Morris explained that the flag is taken down for the winter, but it was taken down before other things were buttoned up in the Park for the winter. He said that procedure will be changed going forward and the flag will be the last item taken down for the winter.

OLD BUSINESS

Remote Participation of Councilors Discussion

A motion was made by Councilor O'Hearne and seconded by Councilor Girard to take Remote Participate of Councilors Discussion off the table.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - no

Stone - yes

Lovett - yes

Motion carried 7-1.

Mayor Lovett said in February 2016 minutes, it shows that she submitted amendments to Council Rules, which were discussed in March. Attorney Taylor said the procedures for participating remotely were already addressed in RSA 91-A and she didn't feel it needed to be a Council Rule, unless the Council wanted more specific information.

Councilor Stone withdrew his motion from the last meeting (A motion was made by Councilor Stone and seconded by Councilor Matteau to restrict remote participation to a Council meeting. Remote participation is not to be used solely for a board member's convenience or to avoid attending a particular meeting in person. Any board member who is unable to physically attend a meeting of the board may make a request to the Mayor to participate in the meeting.). Councilor Stone said he would like to have a discussion about this in January when the new Council is seated. **Councilor Matteau withdrew her second.**

NEW BUSINESS

Opioid Lawsuit Settlement

Mr. Morris said that he had given the Council an update at the August 25 Council meeting, and now the Council needs to decide whether or not to accept the "Big Three" settlement.

Distributors have agreed to pay a maximum of \$21 billion over 18 years, which is estimated to be about \$9,000 a year for Claremont. The attorney working on the City's behalf on the case has recommended the Council agree to authorize Mr. Morris to accept the settlement. He said that Sullivan County has put together an LSR (Legislative Service Request) to change the percentage from 15% to 53% which would change Claremont's amount from \$9,000 to about \$26,000 a year.

A motion was made by Councilor Matteau and seconded by Assistant Mayor Damren that after a public hearing duly noticed, the Claremont City Council hereby authorizes the city manager, or his designees, to take such actions and execute all documents as may be necessary to accept the Opioid Settlement offer as presented in the Distributors' Settlement Agreement of September 18, 2021, by the "Big Three" drug distributors, AmerisourceBergen, Cardinal Health, and McKesson. Said funds are to be used for abatement of the opioid epidemic, including intervention, treatment, education, and recovery services that will best serve our community.

It was noted that there was a "public hearing" written into the motion, but that there was no public hearing listed on the agenda.

A motion was made by Councilor Koloski and seconded by Councilor Stone to table until the next meeting.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - no

Stone - yes

Lovett - yes

Motion carried 7-1.

Mayor Lovett asked for information about the LSR.

Claremont Country Club Discretionary Easement – Public Hearing

Bob McCarthy, City's Contract Assessor, said that the City has received a request for a Discretionary Easement from the Claremont Country Club. He gave some history about previous abatements. His recommendation is for 50% of the assessed value. The current value is \$449,100. Proposed changes would affect 48.97 acres and the appurtenances. The total changes would reduce the \$449,100 to \$311,700, a reduction of \$137,400. This would result in a tax bill change of approximately \$6,485, using the last known tax rate. According to statute, this is a property that serves the community by its open space. The RSA allows us to consider

adjusting the value for that. There are 29 municipalities with discretionary easements for their golf courses and most are between 25-75% of nominal assess value.

Mr. Morris said the golf course draws people to our City and \$6,000 is not a lot of money to help the Country Club.

Councilor Stone supports this. Councilor Matteau would like to know what other communities in the area do. Councilor Koloski would also like more information. This is shifting the tax burden. Assistant Mayor Damren supports this. He said the golf course makes the course available for the Stevens High School golf team. Mayor Lovett would like more information, including how the land is used in other seasons. Councilor Koloski would like a Country Club representative to be present at the next meeting. Councilor Matteau also talked about this reduction being a shift to other taxpayers.

Councilors agreed to place this on the December 8 agenda.

Senior Center PILOT – Public Hearing

Mr. McCarthy gave some history including that the PILOT (Payment in Lieu of Taxes) started in 2002 for \$1,000 a year. Last year, because of COVID-19, the Senior Center was closed for over a year. The Senior Center requested, and the City approved, reducing their payment to \$500 for one year. The City is proposing to go back to the \$1,000 a year PILOT for the balance of the term (four years). Because of the loss of income, it is being recommended to not go above \$1,000 a year, and to revisit this after the four years.

A motion was made by Assistant Mayor Damren and seconded by Councilor Stone that the Claremont City Council, pursuant to RSA 72:23n, approves the proposed Payment in Lieu of Tax (PILOT) agreement between the City of Claremont and the Claremont Senior Center, Inc. for \$1,000 each year for a period of four years (April 1, 2022, through March 31, 2026). The City Council authorizes the City Manager or his designees to take all such actions as may be necessary to execute said PILOT Agreement, and implement this motion in accordance with state law and regulation.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O’Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

Drug Seizure Vehicle Discussion

Police Chief Mark Chase said in February 2020, during a drug investigation, a vehicle was seized. A part of the sentence was that the vehicle was to be turned over to the City free and clear. This vehicle is being added to the fleet. Next year, he will ask to trade in some of the fleet. This is a 2015 Audi with low mileage. He said this won't be a marked vehicle, and it will be used by staff to go to training. It is expected to last for several years.

Community Power Discussion

At 7:37 p.m., Council took a break. Councilor Koloski left on a fire call and did not return to Council Chambers.

Mayor Lovett said in October 2020 that the Council formed an Electric Aggregation Committee. The Committee was charged with making a recommendation for/against the City's participation in an electric aggregation plan, and if the Council wanted to go in that direction, to do the work of developing a municipal aggregation plan in accordance with RSA 53-E:6. She said the Committee has five seats and a third person was finally appointed to the Committee in September 2021. The first meeting was November 8. Committee members are herself, Reb MacKenzie, and Jessica Ball. The plan is to submit a recommendation to the Energy Advisory Committee, who would then bring it back to the Council for consideration. She talked about the Joint Powers Agreement of the Community Power Coalition of NH. If the Council chooses to join the Coalition, the Council would have to commit someone to be a member of the board of directors as well as an alternate. At this point, there is no cost to join the Coalition, however, should the savings not be what is hoped, there is a possibility that there would be a cost to the City, and the cost would be shared among the members of the Coalition.

Mr. Morris said that City Staff continues to attend meetings with Henry Herndon and the Community Power Coalition of NH. There is no rush for Claremont to join this. There are a lot of questions and Claremont needs to watch this carefully.

Councilor Stone asked for an update at the next Council meeting.

Mayor Lovett will give an update under Committee Reports at the December 8 meeting.

ARPA Update

Mr. Morris said the City has received \$676,923, which is half of the funds to be received. Funds need to be obligated by December 31, 2024, and spent through December 31, 2026. This should be opened up to public comment to see what residents would like. We've reached out to GOFERR and it appears that we can do some outdoor recreation, and some air filtering. Some possible projects:

- Relocation and reconstruction of the tennis courts in Monadnock Park

- Moody Park tennis courts would be converted to a basketball and Pickleball court
- Splash pad. Mr. Morris said he thought it would be a good idea to put the splash pad by the Visitors Center.
- City Hall air quality improvements; increase heating and a/c efficiency

Other ideas:

- Kiosks for Central Collections
- Private lead water line replacement
- Façade improvement program
- Incentivize housing
- Fresh air ventilation system for Public Works garage
- Central air system for Public Works offices
- Improvements to water and/or wastewater treatment plants
- Improve resilience of infrastructure (culverts, etc.)

Councilor Matteau said a priority for her is incentivized housing to help with the critical need. She likes the splash pad idea.

Mayor Lovett said if the City moves forward with the tennis courts, we may be able to split the costs with the school. She agreed with Councilor Matteau about incentivized housing being the most critical need. She said the State has said New Hampshire needs 20,000 new units by 2024.

Mr. Morris said the City can put together public meetings/hearings in order to get the public's feedback on the outdoor recreation projects.

Legislative Update

Mayor Lovett had put in the Council packet Categories of LSRs:

1. Establishment of NH State Funds
2. Housing/Development Tools
3. Energy
4. Right-to-Know
5. Municipal Authority
6. Property Taxes
7. State Retirement Fund
8. School Funding/Education Freedom Accounts

Mayor Lovett asked for a sense from Councilors which categories they want to focus on. She thinks category #2 Housing/Development Tools would be a priority.

Mayor Lovett talked about the Mayoral Roundtable and that during past legislative sessions, their focus has been housing, homelessness & revenue sharing. Because of the group's work, NHMA (NH Municipal Association) has just announced the Municipal Advocate Leader of the Year Award is being presented to the mayoral group. First time presented to a group rather than

an individual. Commonalities for concern for all 13 cities is housing, homelessness, revenue streams, and municipal authority.

Assistant Mayor Damren said for him the priorities are # 2 Housing/Development Tools, #5 Municipal Authority, and #6 Property Taxes. He said #8 School Funding/Education Freedom Accounts that the school needs to take lead and the City can piggyback on that. Councilor Matteau agreed.

Council Rule Change (Reading Letters)

Proposed Rule (Reading Letters into the Record):

Mayor Lovett introduced the proposed rule to the Council on October 27, 2021. Prior to introduction, it was reviewed by NHMA Attorney Johnston. It reads as follows:

To have a letter read into the record, either the originator of the letter or his/her designee must do so. No member of the Council shall read a letter from a citizen into the record.

Mayor Lovett said this Council Rule change was introduced at the last Council meeting as a housekeeping issue. In the past, there has not been any consistency about how the Council conducts business regarding reading letters into the record.

A motion was made by Councilor Matteau and seconded by Assistant Mayor Damren, for discussion, that the Claremont City Council hereby amends and readopts its Council Rules as follows: (2/3 vote required)

Reading Letters into the Record.

To have a letter read into the record, either the originator of the letter or his/her designee must do so. No member of the Council shall read a letter from a citizen into the record.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Contois - no

Stone - yes

Lovett - yes

Motion carried 6-1.

COMMITTEE REPORTS

Councilor Stone said the Policy Committee will meet on November 16, 6:00 p.m., and they will work on the RSA 91-A policy for the Council. He estimates bringing the recommended policy to the Council in January.

Councilor Girard said the Airport Advisory Committee just met.

FUTURE AGENDA ITEMS AND DIRECTIVES

None.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 8:21 p.m., a motion was made by Councilor Matteau and seconded by Councilor Stone to adjourn.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 7-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council